

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ROMAN MARCEL VALDEZ,

Petitioner

VS.

ERIN NICOLE WIELENGA,

Respondent

) Case Number: FMS-20-387349

) Hearing Date: July 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: REQUEST FOR APPEARANCE AND EXAMINATION OF JUDGMENT
DEBTOR

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Roman Marcel Valdez (Father) and Respondent Erin Nicole Wielenga (Mother). The parties have one minor child, Emilia (DOB: 5/19/2019). Father is self-represented. Mother is represented by attorney Adrea Tencer.
- 2) On 1/27/2021, a 2-year Domestic Violence Restraining Order After Hearing was issued against Father for the protection of Mother.
- 3) On 3/20/2023, the Court granted Mother's request to renew the DVRO, and issued a permanent restraining order for Mother.
- 4) On 5/6/2025, per the Findings and Order After Hearing filed 5/9/2025, the Honorable Judge Costin found that Father owes to Mother \$22,136.41 in unpaid attorney's fees and interest. Judge Costin ordered the parties to meet and confer and work in good faith to attempt to establish an incremental payment plan that Father can reasonably afford. Judge Costin also noted that interest

1 would continue to accrue at the legal rate of 10% per annum on the unpaid balance until the total
2 balance was paid in full.

3 5) On 5/9/2025, a Judgment was entered with the finding that Father owes Mother \$22,136.41.

4 6) On 6/17/2025 in related Case No. FCS-22-355518, Judge Pro Tem Harding ordered Father to pay
5 Mother \$175 per month in guideline child support (based on Mother's earning \$9,082 and
6 Father's earning \$7,716 in monthly taxable gross income, and Father having a 21% timeshare
7 with Emilia). At that hearing, Mother also agreed to accept \$2,000 in satisfaction of \$7,845.89 in
8 child support arrears owed by Father.

9 7) Now on for hearing is Mother's Request for Order filed 5/20/2026. Attached to Mother's Request
10 for Order is an Application and Order for Appearance and Examination of Judgment Debtor (EJ-
11 125). Also attached to Mother's Request for Order is an Order to Produce Statement of Assets
12 and to Appear for Examination (SC-134). The Court notes the EJ-125 and SC-134 have places for
13 a judge to sign, but a judge has not yet signed these forms.

14 8) Per the Proof of Electronic Service filed 7/16/2026, Mother's Request for Order and the
15 attachments were emailed to Father on 7/1/2026.

16 9) Father did not file a Responsive Declaration.

17 **B. Findings and Order**

18 1) Mother's Application and Order for Appearance and Examination of Judgment Debtor (EJ-125)
19 and Request for an Order to Produce Statement of Assets and to Appear for Examination (SC-
20 134) are hereby granted. The Court will execute the EJ-125 and SC-134 and return these
21 documents to Mother's attorney.

22 2) The date for the examination is set for **Thursday, 10/15/2026 at 9:00 AM in Dept. 404.**

23 3) Mother's attorney shall prepare the Findings and Order After Hearing.

24 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
25 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
26 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
27 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
28 proposed order after hearing directly to the court. Failure to submit the order after hearing within
29

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).